

24NNCV01707 24NNCV01707

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Case Number: 24NNCV01707 Hearing Date: August 10, 2026 Dept: T

Jamie Clegg vs. Bill Austin,
et al.

Motion for

Summary Judgment, or in the Alternative, Summary Adjudication

Moving Party: Defendant

Tropical Roofing Products, Inc.

Responding Party: Unopposed

Tentative Ruling: Grant

BACKGROUND

On May 20, 2024, Plaintiff Jamie Clegg ("Plaintiff") filed a complaint against Defendants Bill Austin, Tropical Roofing Products, Inc., Austin Roofing, Inc. ("Austin Roofing"), and Does 1 through 50, alleging the following causes of action: (1) breach of contract; (2) breach of warranty; (3) negligence; (4) misrepresentation; (5) unfair business practice; (6) product liability; (7) breach of implied covenant of good faith and fair dealing; and (8) negligence infliction of emotional distress.

Defendant Tropical Roofing

Products, Inc. ("Defendant") now moves for summary judgment, or in the alternative, summary adjudication.

No opposition was filed. On July 30, 2026, Defendant filed a notice of

non-opposition.

MOVING

PARTY POSITION

Defendant

argues that all of Plaintiff's causes of action are time-barred under the applicable statute of limitations for each cause of action. Defendant also argues that it is not a proper party to the action. Defendant also argues that Plaintiff's causes of action under Civil Code section 1784 fails as a matter of law because its roofing product is not a consumer good.

OPPOSITION

No

opposition was filed.

REPLY

No reply was filed.

ANALYSIS

I.

Legal

Standard

"[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law[.] There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) "[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact." (Ibid.; Smith v. Wells Fargo Bank, N.A. (2005) 135 Cal.App.4th 1463, 1474 [summary judgment standards held by Aguilar

apply to summary adjudication motions].)

Further, in line with Aguilar, “[o]n a motion for summary adjudication, the trial court has no discretion to exercise. If a triable issue of material fact exists as to the challenged causes of action, the motion must be denied. If there is no triable issue of fact, the motion must be granted.”

(Fisherman's Wharf Bay Cruise Corp. v. Superior Court (2003) 114 Cal.App.4th 309, 320.)

“On

a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial.” (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 839 [cleaned up].)

Further, “the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court’s evaluation of credibility.” (Id. at p. 840 [cleaned up]; see, also, Weiss v. People ex rel. Department of Transportation (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party”].)

II. Discussion

To

start, “[t]he pleadings play a key role in a summary judgment motion” because “the burden of a defendant moving for summary judgment only requires that he or she negate plaintiff’s theories of liability as alleged in the complaint; that is, a moving party need not refute liability on some theoretical possibility not included in the pleadings.” (Hutton v. Fidelity National Title Co. (2013) 213 Cal.App.4th 486, 493, emphasis in original.)

In

his complaint, Plaintiff alleges that, in 2016, he experienced leaks in the

roof of his home and sought advice from Defendant to fix the issue. (Compl., at p. 3.) Defendant's representative inspected the roof

and advised Plaintiff apply a silicone coating product instead of replacing the roof. (Ibid.) The representative also recommended Austin

Roofing to apply the silicone coating to the roof, which Plaintiff followed by entering into a contract with Austin Roofing.

(Id. at p. 4.) After the

silicone was applied, the leaks allegedly persisted and Plaintiff continued to contact Defendant for assistance until finally replacing the entire roof in 2023 or 2024. (Id. at pp. 4–5.)

Defendant now moves for summary judgment on the basis that the statute of limitations is a complete defense to each and all of Plaintiff's causes of action.

In

seeking summary judgment, Defendant sets forth the following undisputed material

facts: In 2016, Plaintiff's roof experienced leaks. (Defendant's Separate Statement of Undisputed Material Facts ("SSUMF") ¶ 1.) On or

about June 4, 2016, Austin Roofing prepared a written proposal for the installation of Defendant's silicone coating on Plaintiff's roof, which

Plaintiff signed and executed on July 10, 2016. (SSUMF ¶¶ 2, 4.) The installation was completed on or about July 18, 2016, and a limited warranty was provided for the silicone

coating. (Id. ¶ 6.) About six months after this installation,

Plaintiff discovered a large leak that he claimed was caused by the silicone coating. (Id. ¶ 7.) He contacted Defendant Bill Austin of Austin

Roofing to repair the discovered leak, and Austin stopped responding to Plaintiff by the end of 2017. (Id.

¶¶ 9–10.) The roof leaked from January

2017 until Plaintiff replaced his roof in 2023 or 2024. (Id. ¶ 11.)

In

considering all the submitted papers, including the uncontroverted evidence contained in the Bracken declaration and supporting exhibits, the Court finds that Defendant has made a prima facie showing that all of the causes of actions are time-barred. Specifically, Plaintiff

stated in his letter to Defendant that he encountered his first leak after the installation in January of 2017 and reached out to Defendant's representative regarding the leak. (SSUMF ¶ 7; Bracken Decl. ¶ 6, Exh. D.) As this undisputed fact

supports an accrual date more than seven years prior to the filing of Plaintiff's complaint on May 20, 2024, the Court finds that Defendant has made a prima facie showing that Plaintiff's causes of action are each barred by the applicable statute of limitations.

Thus,

the Court finds that Defendant carried its initial burden, thereby shifting the burden to Plaintiff. (Code Civ. Proc. § 437c, subd. (p)(2).) As to this shifted burden, the Court notes that Plaintiff did not file an opposition to the instant motion and, consequently, presented no evidence showing a triable issue of material fact exists as to any element of Defendant's statute of limitations defense. Accordingly, the Court finds that Plaintiff failed to carry his shifted burden.

Therefore,

the motion for summary judgment is granted.

As summary judgment is granted on this basis, the Court does not reach the merits of the remaining grounds for summary judgment or adjudication relied upon by Defendant.

RULING

Defendant

Tropical

Roofing Products, Inc.'s Motion for Summary Judgment, or in the Alternative, Summary Adjudication is GRANTED.